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Supreme Court, U.S.
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No. 92-1510

IN THE SUPREME COURT OF THE UNITED STATES

October Term 1992

**MICHAEL J. CAVANAUGH, EXECUTIVE DIRECTOR OF
THE SOUTH CAROLINA DEPARTMENT OF PROBATION,
PAROLE AND PARDON SERVICES; AND SOUTH CAROLINA
DEPARTMENT OF PROBATION, PAROLE AND PARDON SERVICES,**

PETITIONERS,

versus

GARY LEE ROLLER,

RESPONDENT.

Petition for Writ of Certiorari
To the United States Court of Appeals
For the Fourth Circuit

**RESPONDENT'S BRIEF IN OPPOSITION TO PETITION
FOR WRIT OF CERTIORARI**

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The Respondent, Gary Lee Roller, prays that a Writ of Certiorari to review
the judgment of the United States Court of Appeals for the Fourth Circuit be denied.

SUMMARY OF THE ARGUMENTS

I. The Circuit Court correctly determined that as the Respondent, Roller, was challenging the denial of a pre-existing statutory right to parole reconsideration rather than the "fact or duration" of his sentence, 42 U.S.C. §1983 was an appropriate avenue for declaratory and injunctive relief. Under the principles of Preiser v. Rodriguez, 411 U.S. 475 (1973), and the prior Circuit Court decision in Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978), as the Respondent was not seeking release from prison "now or ever" but simply the right to a timely hearing, there is no requirement that the action be brought under a writ of habeas corpus.

II. A statutory change in the time period between parole reconsideration hearings is legally indistinguishable from an increase in time for initial consideration of parole and is subject to ex post facto protection. As the Respondent was statutorily entitled to reconsideration for parole on a yearly basis at the time of his crime and at the time of his sentencing, a subsequent statutory change to provide for a reconsideration hearing every two (2) years should not be applied to the Respondent. The Respondent had a legitimate expectation at the time of his sentencing that if denied parole at his initial hearing he would be entitled thereafter to review for parole on a yearly basis.

ARGUMENT

I. THE CIRCUIT COURT CORRECTLY DETERMINED THAT A CHALLENGE TO DENIAL OF PAROLE CONSIDERATION MAY BE PROPERLY BROUGHT UNDER 42 U.S.C. §1983.

The Petitioner, State, seeks review of a long standing rule of law in the Fourth Circuit that changes in parole eligibility may be challenged under 42 U.S.C. §1983. In essence the State bases its jurisdictional challenge upon the premise that the Circuit Court erred in deciding Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978). It is argued that Strader and this case violate this Court's decision in Preiser v. Rodriguez, 411 U.S. 475 (1973). The State advances no other basis for this Court to grant certiorari under Rule 10.

Preiser v. Rodriguez, 411 U.S. at 509, held "when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus." If Respondent were asking for either an immediate or speedy release from prison, then clearly Preiser would mandate that such action be brought pursuant to habeas corpus. Release was not the relief sought by Roller; only the opportunity for a timely parole hearing. Roller's lawsuit challenged the State's action in retrospectively cutting in half his opportunities to seek parole in violation of the Constitution's protection against ex post facto laws. It was never alleged that Respondent was unlawfully detained nor that he was entitled to be released on parole, now or in the future. "Like the inmate in Strader, Roller does not argue that he is entitled

to parole." (Opinion, Fourth Circuit Court of Appeals, Roller v. Cavanaugh, Petitioner's Appendix at p. 9).

Where the prisoner's challenge is not to the fact of imprisonment or its duration, it is inappropriate to bring a habeas corpus action. The appropriate and only federal remedy available to a prisoner for declaratory or injunctive relief to matters unrelated to the fact of confinement is §1983. The Respondent respectfully requests that the Petition for Writ of Certiorari be denied on this issue.

II. A STATUTORY RIGHT TO PAROLE ELIGIBILITY AND RECONSIDERATION HEARINGS IS PROTECTED FROM SUBSEQUENT LEGISLATIVE CHANGES BY THE PROHIBITION OF EX POST FACTO LAWS.

The State seeks certiorari review of this issue as an earlier decision of the South Carolina Supreme Court in Gunter v. State, 298 S.C. 113, 378 S.E.2d 443 (1989), conflicts with the Fourth Circuit's decision in this case. Gunter held that the increase in time for parole reconsideration hearings was not a violation of the ex post facto clause.

The State concedes that the change in time between reconsideration hearings works to Roller's disadvantage. The State argues, however, that the disadvantage is insubstantial and is somehow different in nature from a delay in initial consideration for parole. Conceding that delay in initial parole eligibility is violative of the ex post facto clauses of the Constitution, the State argues that once Roller reaches his initial parole eligibility date he is eligible for parole thereafter and the one year delay in reconsideration

is simply a procedural change "governing the interval between parole hearings after a rejection." (State's Petition for Certiorari, p. 37).

The State engages in a game of semantics when distinguishing between parole "eligibility" and "reconsideration". The reality of the State's present situation is that once parole has been denied, Roller is not again eligible for consideration of parole for two years rather than the one year review mandated by law at the time of his crime and sentencing. The State makes the somewhat circular argument that Roller is currently eligible for parole although he is prevented from engaging in the only procedure by which he may obtain parole. As pointed out by the Circuit Court, "[e]ligibility without consideration is cold comfort." (Appendix p. 17).

The State agrees that Georgia violated the ex post facto provision of the Constitution when it changed parole reconsideration hearings from every year to every 8 years. Akins v. Snow, 922 F.2d 1558 (11th Cir. 1991). The State is unable to find similar fault in its own actions. The only difference between Georgia's and South Carolina's actions is the amount of time involved. Certainly Petitioner would not take the position that changing the actual sentence for a crime would not violate the ex post facto provision of the Constitution if the sentence increased by only 1 year, as opposed to 8 years. The violation either occurs or not and the determination of what constitutes a violation cannot reasonably hinge on the magnitude of the violation. The State's argument that one year was not a matter of substance was not accepted by the Circuit Court. "We are not willing to disparage the 'substance' of a year, especially a year in prison." (Petitioner's Appendix, p. 16).

The Circuit Court correctly determined that the impact of the change in statutory law worked to the disadvantage of Roller and that the protections of the ex post facto clauses of the Constitution extend to statutory changes in time periods for parole reconsideration.

CONCLUSION

FOR THE FOREGOING REASONS, the Respondent requests that the Petition for Writ of Certiorari be denied.

RESPECTFULLY SUBMITTED, this the 14th day of April, 1993, in Columbia, South Carolina.

FAIREY, PARISE & MILLS, P. A.


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ATTORNEY FOR RESPONDENT.

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April 14, 1993

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EXPRESS MAIL SERVICE

The Honorable William K. Suter
Clerk of Court
Supreme Court of the United States
1 First Street, N.E.
Washington, D. C. 20543

ATTENTION: RUTH B. JONES, Assistant Clerk

Re: Michael Cavanaugh, et al. v. Gary Lee Roller, No 92-1510

Dear Ms. Jones and Mr. Suter:

Enclosed please find the original and one (1) copy of each of the following,
which we do hereby submit for filing in reference to the above-captioned action:

1. Respondent's Brief in Opposition to Petition for Writ of Certiorari;
2. Motion For Leave To Proceed In Forma Pauperis;
3. Affidavit of Timely Filing; and
4. Affidavit of Service By Mail.

If you require anything further from us or have any questions, please do not
hesitate to contact our office and thank you for your time and assistance herein.

Sincerely,

FAIREY, PARISE & MILLS, P. A.


W. Gaston Fairey

WGF/cje
Enclosures
cc & enc.:

Carl N. Lundberg
Gary Lee Roller

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AFFIDAVIT OF SERVICE BY MAIL

NOW COMES the undersigned who swears and affirms the following upon
his oath:

THAT he is a member of the United States Supreme Court Bar having been
admitted on November 26, 1984.

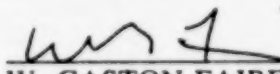
THAT timely service of the Respondent's Brief in Opposition to the Petition
for Writ of Certiorari and Motion to Proceed In Forma Pauperis was completed on the 14th

day of April, 1993, by mailing one (1) copy of said Brief in Opposition and one (1) copy of the Motion from the Main Post Office, Assembly Street, Columbia, South Carolina, first class, postage prepaid, addressed to Carl N. Lundberg, Esquire, Chief Legal Counsel, South Carolina Department of Probation, Parole, and Pardon Services, Post Office Box 50666, Columbia, South Carolina 29250.

AND THAT all parties required to be served in this matter have been so served.

SIGNED this the 14th day of April, 1993, in Columbia, South Carolina.

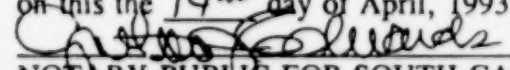
FAIREY, PARISE & MILLS, P. A.


W. GASTON FAIREY

Post Office Box 8443
Columbia, South Carolina 29202
(803) 252-7606

ATTORNEY FOR RESPONDENT.

SWORN TO AND SUBSCRIBED BEFORE ME
on this the 14th day of April, 1993.


NOTARY PUBLIC FOR SOUTH CAROLINA
My Commission Expires: 7-28-2002

No. 92-1510

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admitted on November 26, 1984.

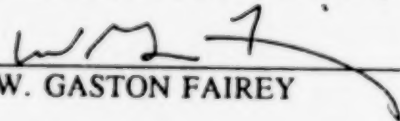
THAT timely mailing of the Respondent's Brief in Opposition to Petition for
Writ of Certiorari and Motion to Proceed In Forma Pauperis was completed on the 14th day

of April, 1993, said Brief and Motion being mailed to the Office of the Clerk of Court of the Supreme Court of the United States by Express Mail, One-Day Service through the United States Mail, postage prepaid.

AND THAT service was had upon Carl N. Lundberg, Esquire, Chief Legal Counsel, South Carolina Department of Probation, Parole, and Pardon Services, Post Office Box 50666, Columbia, South Carolina 29250, on the 14th day of April, 1993, by mail.

SIGNED this the 14th day of April, 1993, in Columbia, South Carolina.

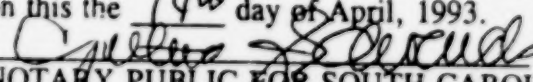
FAIREY, PARISE & MILLS, P. A.


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ATTORNEY FOR RESPONDENT.

SWORN TO AND SUBSCRIBED BEFORE ME
on this the 14th day of April, 1993.


NOTARY PUBLIC FOR SOUTH CAROLINA
My Commission Expires: 7-28-2000